



Appeal Decision

Site visit made on 12 August 2026

by J D Clark BA (Hons) DpTRP MCD DMS MRTPI

an Inspector appointed by the Secretary of State

Decision date: 26th August 2026

Appeal Ref: 6008087

Nine Oaks, Stocks Lane, Over Peover, Cheshire East WA16 8TU

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Paul Elliott against the decision of Cheshire East Council.
 - The application Ref is 25/2665/HOUS.
 - The development proposed is demolition of existing extensions and construction of new extensions.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The decision notice quotes Site Allocations and Development Policies Document (SADPD)¹ Policy RUR 13. The Council has confirmed that this is an error and the correct policy is RUR 11. The appellant's statement refers to both policies so I am satisfied that no injustice has occurred as a result of this error.
3. A new National Planning Policy Framework (the Framework) was published on 17 August 2026. Whilst there are various alterations to the new Framework those relevant to this proposal remain similar and although the format and wording have changed, these do not have a bearing on the matters before me. Therefore, given the scope of the changes relevant to this case, and having considered the principles of natural justice, I do not consider it necessary to request the views of the main parties. My assessment is made on the basis of the 2026 version of the Framework.

Main Issues

4. The main issues are:
 - whether the proposal is inappropriate development in the Green Belt having regard to the National Planning Policy Framework and relevant development plan policies and its effect on openness;
 - the effect of the proposal on a protected priority species, in particular bats; and
 - whether any harm by reason of inappropriateness, and any other harm, is clearly outweighed by other considerations, so as to amount to the very special circumstances necessary to justify the development.

¹ Cheshire East Council – Cheshire East Local Plan Site Allocations and Development Policies Document Adopted December 2022 (SADPD).

Reasons

Green Belt

5. The appeal site is a detached two storey house in a row of linear residential properties within the settlement of Over Peover, an infill village within the Green Belt. It was originally a dormer bungalow but has been previously extended. Some additions appear to be lawful whilst others are not. My view is mostly based on the matter of an outstanding enforcement notice for the removal of a two-storey rear extension, a first floor side extension, a single storey side extension, and alterations made to the roof including a roof lantern. The notice requires the house to be re-instated to its prior appearance shown on Drawing No 2530 102, marked Plan B. A copy of the Inspector's decision and plans have been submitted².
6. There is some dispute regarding the percentage increases for the house. The planning approval in 1987 increased the dwelling by between 44% and 47%. The Inspector dismissed the appeal based on the increase being 142% of the original. The appellant states that this proposal would see an increase of 86% or 71% if the garage is excluded, whilst the Council state it would be almost 100%. Some figures seem to include internal dimensions whilst others are external. It is likely that some discrepancies are also due to microfilmed plans or inaccurately scaled plans.
7. The Framework explains that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances. Policy GB7 sets out categories of development which are not inappropriate in the Green Belt. GB7 1) (b) cites the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building. Whilst the wording in Local Plan Strategy³ Policy PG 3 differs from the Framework, the thrust of it remains largely consistent.
8. SADPD Policy RUR 11 criterion1 (i) also requires extensions and alterations not to be disproportionate. Criterion 1 (ii) and (iii) require extensions and alterations to respect the character of the existing building and not unduly harm the rural character of the countryside by virtue of prominence, excessive scale, bulk or visual intrusion.
9. In considering disproportionate additions, Policy RUR 11 indicates that matters such as height, bulk, form, siting and design will be taken into account, with particular attention given to the increase in the overall building height. Taking these matters into account, in the Green Belt a threshold of 30% is usually considered to represent disproportionate additions. An exception to this threshold can be accepted within an infill village, amongst other things.
10. Whichever calculations are taken into account, the 30% threshold is substantially exceeded. Given a larger increase may be acceptable in an infill village, as is the case here, and criteria (ii) and (iii) referred to above, a greater increase may be justified. However, the proposed dwelling bears little resemblance to the original dormer bungalow and it would be out of character in terms of general scale, form

² Appeal Ref: APP/R0660/C/24/3346262.

³ Cheshire East Council – Cheshire East Local Plan Local Plan Strategy 2010 – 2030 July 2017.

and design. Also, it would be a much more prominent building than the original and of a greater scale and bulk. Although the original dwelling has long been subsumed by previous extensions, Green Belt assessment is based on the original dwelling and from the information submitted I cannot come to any other conclusion other than the proposal would be disproportionate and therefore inappropriate development in the Green Belt.

11. Furthermore, openness is an established characteristic of Green Belts having both a spatial and visual impact. Numerically the extension would have a spatial impact given the size of the percentage increase in floorspace. Visually the proposed building would be larger, in terms of its height, bulk and massing. It cannot therefore have anything other than a greater impact on openness.
12. I therefore conclude that the proposed dwelling would represent a disproportionate addition to the original dormer bungalow. This would be inappropriate development which carries substantial weight. The proposal would also have a greater impact on Green Belt openness which would cause further harm. This would conflict with Local Plan Strategy Policy PG 3 and SADPD Policy RUR 11.

Protected Species – Bats

13. The submitted bat surveys found evidence of bats in the building in terms of minor roosting activity. Mitigation measures are suggested comprising the installation of bat boxes. A condition is suggested to ensure this.
14. Regulation 9(3) of the Conservation of Habitats and Species Regulations 2017 (as amended) (the Regulations) requires a competent authority to have regard to the requirements of the associated Directive so far as it may be affected by the exercise of its functions. This includes any proposal that might lead to the deterioration or destruction of the breeding sites and resting places of European Protected Species (EPS) under Article 12(1)⁴. This includes bats and the places that they roost, irrespective of whether or not they are present at the time the development is carried out.
15. The Courts⁵ have established that planning permission should ordinarily be granted save only in cases where a proposed development would be likely to offend Article 12(1) and unlikely to be licensed pursuant to the delegation powers. The duty to have regard to the Directive, as set out in Regulation 9(1), remains but the judgement establishes that there is no need to carry out a detailed assessment as to whether there would be a breach of Article 12(1) or whether derogation from that article would be permitted and a licence granted.
16. Nevertheless, I am still required to ensure that any potential harm to an EPS would be adequately mitigated and whether or not the proposed development is likely to be licensed. Bearing in mind the suggested mitigation measures I find that the proposal would not offend Article 12(1). I am satisfied that the mitigation hierarchy has been followed and there would be no significant harm to the long term conservation status of the bat species identified.
17. I am satisfied that conditions would provide the necessary detail and certainty to ensure mitigation. As the PPG makes clear, conditions should be used to enable development to proceed where it would otherwise have been necessary to refuse

⁴ Council Directive 92/43/EEC of 21 May 1992 on the Conservation of Natural Habitats and of Wild Fauna and Flora (the Directive).

⁵ *Morge v Hampshire County Council* [2011] UKSC 2.

planning permission, by mitigating the adverse affects. Having reviewed the suggested condition, I have no reason to doubt that it would be ineffectual in this instance.

18. Turning to licensing matters, there is no evidence that Natural England has been consulted but I have no reason to doubt that a mitigation license would not be issued on the basis of the evidence before me. Furthermore, it is not for me to determine whether the legal tests for a licence would be met as this would duplicate the function of another regulatory body and would be contrary to the well-established principle that non-planning regimes are assumed to operate effectively.
19. I conclude that, subject to conditions, no significant harm to a protected priority species, in particular bats or their roosts would be caused. Consequently, the proposal would not conflict with Local Plan Strategy Policy SE 3 or SADPD Policy ENV 2. Amongst other things, these seek to ensure that there is no overall loss of biodiversity and any development follows the mitigation hierarchy, in this case by the steps put forward by the appellant and agreed by the Council's ecologist. I am also satisfied that the proposal would not conflict with Chapter 19 of the Framework which, amongst other things, seeks to safeguard important habitats and species.

Other Considerations

20. As referred to above, the original dwelling was a dormer bungalow. However, it has significantly changed over the years so that the dwelling that now stands is a larger two storey house. Part of it is unlawful and an enforcement notice, also referred to above, requires partial demolition. The resulting house is shown on the submitted Plan B. From the plans submitted, the works required under the Enforcement Notice would result in a dwelling that would be quite different in scale and appearance compared to the original dwelling.
21. The proposal would result in a yet larger dwelling than that under the 1987 approval; which the enforcement notice would require the building to be reinstated to. It would be larger, especially at the rear but its impact would be lessened by the removal of the existing front gable projection. The house is set back from the road but it is visible. The existing garage sits very close to the front of the house, removing the front gable projection would create some space between the house and the garage.
22. The bulk of the additions would be to the rear of the house which in the context of its setting would not appear unduly prominent. The rear elevation as built is similar to that proposed with large areas of glazing on the ground floor and Juliet balconies on the first floor. The existing house also incorporates a roof lantern which, whilst is slightly incongruous, is only glimpsed from positions further away from the house. Given that the large front gable projection would be removed, the impact of the extra bulk added to the rear is lessened.
23. I am mindful that this is not an isolated dwelling or even part of a small group of dwellings in the Green Belt but is within the identified village settlement. In this case, the differences between the permitted dwelling and that proposed would have a neutral effect.

Other Matters

24. The appellant argues that the garage could be excluded from these calculations as outbuildings are considered in their own right but in any event the increase is consistent with other examples cited. These allowed 62%, 82% and 85% increases⁶. On this basis, the appellant considered the proposal not to be inappropriate development. However, although it does not come as a surprise that other examples can be brought forward and there does seem to be cases where in percentage terms the Council has allowed large additions to dwellings in the Green Belt, I do not have sufficient information about these cases to draw direct comparisons. I therefore can afford them only limited weight.

Planning Balance

25. I have found that the proposal to be inappropriate and the Framework is clear that harm caused by inappropriateness, and any other harm, should be clearly outweighed by other considerations. In this case, although the demolition of part of the existing dwelling would reduce the bulk of the house from the front, overall, the differences between the permitted dwelling and that proposed would have a neutral effect which does not go far enough to amount to the very special circumstances necessary to overcome the identified harm. Furthermore, whilst I have not found additional harm in relation to a protected priority species, in particular bats, the lack of harm in this matter does not overcome the substantial harm caused by inappropriateness and harm to the openness of the Green Belt.

Conclusion

26. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it. Consequently, for the above reasons, the appeal should be dismissed.

J D Clark

INSPECTOR

⁶ Planning Application Refs: 23/4711M; 23/2120M; and 21/2084M.